

BC674357 BC674357

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Case Number: BC674357 Hearing Date: September 29, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: Tuesday, September 29,
2026

Case Name: Done Ventures LLC
v. Jerry Jamgotchian, et al.

Case No.: BC674357

Motion: Motion of

Coastal Laundromat, Inc. for Attorneys' Fees and to Vacate Hearing on Motion to
Tax Costs

Moving Party: Plaintiff and Judgment
Creditor Coastal Laundromat, Inc.

Responding Party: Defendants and Judgment
Debtors Jerry Jamgotchian, El Segundo Plaza Associates L.P., and Theta Holdings
IV, Inc.

Notice: OK

Ruling: The

Motion for Attorneys' Fees and to Vacate Hearing on Motion to Tax Costs is GRANTED IN PART.

The request for attorneys' fees is GRANTED in the reduced sum of \$104,564.00.

The request to vacate the hearing on Defendants' motion to tax costs is DENIED WITHOUT PREJUDICE.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

BACKGROUND

This action arises from the alleged wrongful action of refusing to permit the assignment of a lease between plaintiffs DONE! Ventures, LLC ("Done!") and Coastal Laundromat, Inc. ("Coastal").

On August 30, 2017, in DONE! Ventures, LLC v. Jerry Jamgotchian, et al., LASC Case No. BC674357, Done! filed a complaint against defendants Jerry Jamgotchian ("Jamgotchian"), El Segundo Plaza Associates L.P. ("ESPA"), and DOES 1 through 100, inclusive. In BC674357, Done! filed a First Amended Complaint on January 19, 2018, and a Second Amended Complaint on May 8, 2018. The amended pleadings named Theta Holding IV, Inc. ("Theta") as a defendant. The Second Amended Complaint asserted causes of action for: (1) Negligent Interference with Prospective Economic Relations; and (2) Violation of Cal. Bus. and Prof. Code § 17200, et seq.

On December 21, 2017, in Coastal Laundromat, Inc. v. Jerry Jamgotchian, et al., LASC Case No. BC687720, Coastal filed a complaint against defendants Jamgotchian, ESPA, and Theta alleging causes of action for, inter alia, Breach of Contract and

Declaratory Relief. Coastal subsequently filed a First Amended Complaint and a Second Amended Complaint in BC687720. The Second Amended Complaint was filed on May 24, 2018, alleging causes of action for: (1) Intentional Interference with Contractual Relations; (2) Negligent Interference with Prospective Economic Relations; (3) Breach of Contract; (4) Violation of Bus. and Prof. Code § 17200; and (5) Declaratory Relief.

On June 13, 2018, BC674357 and BC687720 were consolidated. BC674357 was deemed the lead case.

On February 7, 2023, a jury entered verdicts in favor of plaintiffs DONE! and Coastal, and against defendants Jamgotchian, ESPA, and Theta for Plaintiffs' claims for interference with contract, negligent interference with prospective economic advantage, and breach of contract.

On May 8, 2023, the Court entered a "judgment" on the verdict.

On July 12, 2023, the Court ruled on a motion for new trial/JNOV, stating that the amount of punitive damages award by the jury was improper and that Coastal was either to stipulate to \$525,000 or else the Court would grant a new trial only as to the amount of punitive damages. Coastal stipulated to taking less punitive damages.

On September 5, 2023, the Court ruled on Coastal's motion for attorneys' fees and prejudgment interest. Prejudgment interest was rejected, but the Court awarded \$357,673 in fees.

On February 6, 2024, the Court entered a final ruling denying Defendants' motion to tax costs with respect to Done!. That ruling also rejected prejudgment interest for Done!.

On February 27, 2024, the Court entered an "amended judgment", which reduced the amount of punitive damages to be obtained by Done! and indicated the amount of fees, costs, and prejudgment interest to be awarded as discussed above.

On March 27, 2024, the Court, inter alia, denied Defendants' request to amend the February 27, 2024, judgment.

Subsequently, Coastal sought post-judgment attorneys' fees for the period between July 25, 2023, and March 31, 2024 in the sum of \$122,488. On August 8, 2024, the Court granted the motion in part.

Subsequently, Jamgotchian and his entity Defendants decided to pursue six consolidated appeals. Jamgotchian and his entity Defendants were not successful on appeal.

On January 14 and January 20, 2026, Coastal filed acknowledgments of partial satisfaction of judgment.

Coastal filed a motion for attorneys' fees incurred on appeal. On February 5, 2026, after hearing, the Court granted the motion in part.

On July 10, 2026, the Court entered judgment denying third-party claims.

On July 13, 2026, the Court denied the ex parte application of third-party claimants to set an evidentiary hearing on their third-party claims.

On July 16, 2026, Coastal filed a memorandum of costs requesting post judgment costs in the sum of \$67,735.02, which represents the following: (1) attorney fees in the sum of \$66,124.07 for the time period between December 12, 2025, and July 9, 2026; and (2) costs of \$1,610.95 pursuant to Code Civ. Proc. § 685.040.

On July 22, 2026, the Court denied the ex parte application of third-party claimants for an order vacating judgment as to the unadjudicated and unwaived 529 Pacific Avenue levy.

On July 24, 2026, Defendants filed a motion to strike Coastal's July 16, 2026 cost memorandum. The hearing on such motion is set for hearing on January 7, 2027.

Coastal now moves for attorneys' fees in the sum of \$112,725.50 pertaining to enforcing its judgment in this action. Coastal also moves for an order vacating Defendants' pending motion to

tax costs.

On September 2, 2026, third-party claimants Patricia Jamgotchian, Nicole Jamgotchian, and Krista Jamgotchian filed a notice of appeal of the Court's July 10, 2026 judgment, as well as the Court's July 13 and July 22, 2026 orders denying their respective ex parte applications.

On September 16, 2026, Defendants filed an opposition.

On September 21, 2026, Coastal replied.

DISCUSSION

Applicable Law

"The judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment." (Code Civ. Proc., § 685.040.) "Attorney's fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law." (Id.) "Attorney's fees incurred in enforcing a judgment are included as costs . . . if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of Section 1033.5." (Id.) Attorney's fees are allowable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) A "judgment creditor may claim costs as authorized by Section 685.040 by noticed motion" and such motion must be made before the judgment is fully satisfied "but not later than two years after the costs have been incurred." (Code Civ. Proc., § 685.080, subd. (a).) "The notice of motion shall describe the costs claimed, shall state their amount, and shall be supported by an affidavit of a person who has knowledge of the facts stating that to the person's best knowledge and belief the costs are correct, are reasonable and necessary, and have not been satisfied." (Code Civ. Proc., § 685.080, subd. (b).) "The notice of motion shall be served on the judgment debtor. Service shall be made personally or by mail." (Id.)

Application to Facts

Coastal moves for an order of attorneys' fees incurred in enforcing its judgment in this action. (Not. of Mot. at p. 2:4-6.) Coastal

seeks \$112,725.50 pursuant to the instant motion and seeks such amount jointly and severally against Defendants. (Id. at p. 2:6-8.) Coastal also moves to vacate the hearing on Defendants' motion to tax costs. (Id. at p. 2:13-16.)

Preliminary Issues

Initially, the Court notes two defects concerning the opposition of Defendants.

First, Defendants provide an index of exhibits in support of the opposition. (Opp'n at p. 31.) However, there is no declaration in support of the opposition that authenticates said exhibits. Thus, the Court will not consider the exhibits offered in support of the opposition due to the lack of authentication. (Opp'n at p. 31.)

Second, excluding exhibits, the table of contents, and the table of authorities, the Court notes that the opposition memorandum of points and authorities is 24 pages. The opposition memorandum of points and authorities is set forth on pages five (5) through twenty-eight (28), inclusive. Defendants have not complied with the 15-page limit set forth in California Rules of Court, rule 3.1113(d). "[N]o opening or responding memorandum may exceed 15 pages." (Cal. Rules of Court, Rule 3.1113(d).)

Defendants did not seek leave of this Court, or otherwise obtain permission, to file an opposition brief beyond the page limits set forth in California Rules of Court, rule 3.1113(d). Coastal requests that the Court decline to consider the opposition. (Reply at p. 5:3-8.) Defendants should have applied "to the court ex parte . . . for permission to file a longer memorandum." (Cal. Rules of Court, Rule 3.1113(e).) "A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper." (Cal. Rules of Court, Rule 3.1113(g).)

While the Court will consider the opposition of Defendants, the Court will not consider any arguments set forth beyond page nineteen (19) of the opposition brief. Defendants are admonished to comply with the requirements of the California Rules of Court.

Analysis

The Effect of the Pending Appeal

Defendants assert that the Court should stay the instant motion pending resolution of the appeal from the third-party claim orders. (Opp'n at pp. 7-10.) On reply, Coastal contends that the appeal from third-party claim rulings does not stay this collateral fee motion. (Reply at pp. 5-6.)

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Varian Medical Systems, Inc. v. Delfino, (2005) 35 Cal.4th 180, 189, [not followed as dicta on other grounds in Barry v. State Bar of California, (2017) 2 Cal.5th 318].) "The purpose of the automatic stay provision of section 916, subdivision (a) is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The [automatic stay] prevents the trial court from rendering the appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it." (Ibid.)

The Court finds that a stay of the instant motion is not currently warranted. As stated in *Bankes v. Lucas* (1992) 9 Cal.App.4th 365, 368: "[T]he filing of a notice of appeal does not deprive the trial court of jurisdiction to award attorney fees as costs post trial." The Court finds that Defendants' reliance on *Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689 is inapposite as such case involved a trial preference issue and not a request for post-judgment attorneys' fees.

Therefore, the Court will rule on the instant motion.

Defendants' Pending Motion to Tax Costs

Coastal contends that the pending motion to tax costs of Defendants is rendered moot by the instant motion, and requests that said motion be taken off calendar. (Memo. of Ps and As at pp. 9-10.) Defendants assert that Coastal cannot "leap-frog" their timely motion to tax and thereby erase their objections to its cost claim. (Opp'n at pp. 10-11.)

The Court finds that Coastal's reliance on *Highland Springs Conference & Training Center v. City of Banning* (2019) 42

Cal.App.5th 416 ("Highland") is inapposite. Highland, supra, 42 Cal.App.5th 416, 430, where it was deemed that a motion for attorneys' fees superseded a motion to tax costs because the fee motion sought all fees requested in the cost memorandum, is factually distinguishable. Here, the cost memorandum of Coastal does not seek the exact amount of fees sought via the instant motion. In fact, Coastal indicates on reply that the instant motion "supersedes its filed [m]emorandum of [c]osts." (Reply at p. 11:17-18.)

Thus, the Court does not find that the instant motion supersedes or somehow obviates the motion to tax costs of Defendants.

Purported Satisfaction of the Judgment

Defendants argue that the motion is barred because the judgment was already satisfied in full before the current fee request. (Opp'n at pp. 11-12.) Coastal disputes such contention. (Reply at pp. 8-10.)

Initially, the Court finds that Defendants have not presented any admissible evidence to support their contention that the judgment has been fully satisfied as it concerns Coastal. "In law and motion practice, factual evidence is supplied to the court by way of declarations." (Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 224.) The sole declaration in support of the opposition is from Darren M. Salvin, whose declaration serves to admit Coastal's memorandum of costs into evidence.

Relevantly, the Court finds that Coastal has only filed partial satisfactions of judgment. Upon reviewing the court file, no full satisfaction of judgment has been filed as to Coastal. Defendants are advised that "if the judgment is not . . . satisfied, any costs or fees accruing later may be sought in a supplemental motion or memorandum." (Conservatorship of McQueen (2014) 59 Cal.4th 602, 615.)

Thus, the instant motion is not barred as there has been no full satisfaction of the judgment as it concerns Coastal.

Compliance with Code Civ. Proc. § 685.080(b)

Defendants contend that the motion should be denied because Coastal has not provided the affidavit expressly required by Code Civ. Proc. § 685.080(b).

“The notice of motion shall describe the costs claimed, shall state their amount, and shall be supported by an affidavit of a person who has knowledge of the facts stating to the person’s best knowledge and belief that the costs are correct, are reasonable and necessary, and have not been satisfied.” (Code Civ. Proc., § 685.080, subd. (b).)

The Court has reviewed the declarations of Clayton Hix (“Hix”), Kyle Kelley (“Kelley”), and Gretchen D. Lichtenberger (“Lichtenberger”) submitted with the moving papers. The Court has also reviewed the supplemental declarations of Hix, Kelly, and Lichtenberger submitted on reply. Taken together, such declarations establish that the fees claimed are correct, reasonable, and necessary. The supplemental declaration of Hix explicitly states that the judgment has not been satisfied. (Hix Suppl. Decl. ¶ 3.) Coastal has therefore satisfied the requirements of Code Civ. Proc. § 685.080(b).

Reasonableness of the Claimed Fees

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys’ fees award].) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at p. 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and

difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271 [citation omitted].)

Where a party is challenging the reasonableness of attorney's fees as excessive that party must “attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563-564.) “[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (Id. at p. 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Ibid.)

Evidence in Support of the Motion

Hix declares, inter alia, that he has been practicing law since 2005. (Hix Decl. ¶ 6.) Hix attests that his time records are accurate. (Id. ¶ 8, Ex. 5.) Hix spent 75.60 hours during the requisite time period on post-judgment enforcement. (Id.) Hix currently bills his clients at \$650 per hour; however, Coastal will accept his \$565 hourly rate previously accepted by the Court. (Id. ¶ 9, Ex. 8.) In his supplemental declaration, Hix attests that he does not represent Done! and that all fees requested are exclusively related to enforcement of Coastal's portion of the judgment. (Hix Suppl. Decl. ¶ 2.)

Kelley declares, inter alia, that he spent 41.6 hours on Coastal's enforcement of the judgment between December 24, 2025, and July 31, 2026. (Kelley Decl. ¶¶ 2-3.) Kelley presents his time records. (Id. ¶ 2, Ex. 6.) Kelley anticipates spending one (1) hour reviewing the opposition and 2.5 hours drafting a reply. (Id. ¶ 4.) Kelley attests that “[t]o the extent I performed work on the third party claims issues, I did that exclusively with Mr. Hix and Ms. Lichtenberger for Coastal, and all of the third party claims work performed for DONE! was rendered by the Carpenter & Zuckerman firm.” (Kelley Suppl. Decl. ¶ 4.)

Lichtenberger is a Freelance Certified Paralegal.

(Lichtenberger Decl. ¶ 2.) Lichtenberger presents time records for work performed for Coastal, which equals 162.2 hours. (Id. ¶ 3, Ex. 7.) In her supplemental declaration, Lichtenberger attests that all the work she performed was for Coastal. (Lichtenberger Suppl. Decl. ¶ 7.) Lichtenberger spent 8.3 hours reviewing the opposition and on reply-related tasks. (Id. ¶ 8.) Lichtenberger attests to the reasonableness and necessity of her work. (Id. ¶ 9.)

The Fees Sought are Reasonable

The Court finds that Coastal has presented sufficient evidence to substantiate the necessity and reasonableness of the tasks performed. (See Kelley Suppl. Decl. ¶ 2; see also Hix Decl. ¶ 3.) Coastal requests a lodestar amount of: (1) \$45,662.40 for Hix (representing 75.6 hours at the hourly rate of \$604 per hour); (2) \$23,593.50 for Kelley (representing 44.1 hours of work at the hourly rate of \$535 per hour); and (3) \$43,439.60 for Lichtenberger (representing 162.2 hours of work at the hourly rate of \$268 per hour). (Memo. of Ps and As at p. 9.)

As stated by Coastal: “[T]his Court has already approved hourly rates of \$565 for Mr. Hix, \$500 for Mr. Kelley, and \$250 for Ms. Lichtenberger covering the time period of 2023 and 2024.” (Memo. of Ps and As at p. 8:16-18.)

The Court finds that Coastal has shown the reasonableness of the claimed fees. However, while the Court takes judicial notice of the Consumer Price Index (See Memo. of Ps and As at p. 8:2-28), the Court finds that Coastal has not shown facts to substantiate the requested increased hourly rates. Coastal has not presented evidence, for instance, that the litigation was novel or required great skill. The Court therefore will utilize its previously approved hourly rates for Hix (\$565 per hour), Kelley (\$500 per hour), and Lichtenberger (\$250 per hour) in assessing the amount of fees. (See Hix Decl., Exs. 3 and 8.)

As to the hours worked, on reply, Coastal withdraws the 2.5 hours of expected time without prejudice. (Reply at p. 15:2-5.) As such, with the withdrawal of 2.5 hours, the hours spent by Kelley are reduced by 2.5 hours to 41.6 hours.

To the extent that Defendants contend that the fees

sought concern tasks involving the third-party claimants, Defendants have not presented admissible evidence of such fact. (Opp'n at pp. 14-16.) Relevantly, as stated in *Cardinale v. Miller* (2014) 222 Cal.App.4th 1020, 1025: "[T]he statute [CCP § 685.040] by its terms is broad enough to encompass fees expended to enforce a judgment against third parties who conspired with the judgment debtor to evade its enforcement."

The Court finds that Coastal has substantiated its request for attorneys' fees. Defendants have not met their burden in challenging the reasonableness of the claimed post-judgment fees. Coastal has shown that the fees were incurred enforcing a judgment. (See *Cardinale v. Miller*, supra, 222 Cal.App.4th 1020, 1025.) Moreover, Coastal has shown that the underlying judgment included an award of fees pursuant to Code Civ. Proc. § 1033.5(a). (See *Ibid.*; see also Hix Decl., Ex. 2 at p. 18.)

Accordingly, the instant motion is GRANTED IN PART.

The Court GRANTS the request for attorneys' fees and AWARDS post-judgment attorneys' fees in the reduced sum of \$104,564.00. Such an amount represents \$21,300.00 for the work of Kelley (42.6 hours at \$500/hour), \$42,714 for the work of Hix (75.6 hours at \$565/hour), and \$40,550 for the work of Lichtenberger (162.2 hours at \$250/hour).

The request to vacate the hearing on Defendants' motion to tax costs is DENIED WITHOUT PREJUDICE.

CONCLUSION

The Motion for Attorneys' Fees and to Vacate Hearing on Motion to Tax Costs is GRANTED IN PART.

The request for attorneys' fees is GRANTED in the reduced sum of \$104,564.00.

The request to vacate the hearing on Defendants' motion to tax costs is DENIED WITHOUT PREJUDICE.

Moving
party to give notice.